

Anuttam Kumar Pandey v. Uttar Pradesh Power Corporation

Allahabad High Court · Division Bench · 31 May 2022 · WRIT - C No. 4465 of 2022 · **Writ disposed; liberty to object under Para 6.8; coercive action stayed eight weeks**

HEADNOTE

Writ seeking quashing of a Rs 5,62,123 demand notice and a mandamus to decide a pending representation was disposed without any opinion on merits. The petitioner was given liberty to file an objection under Para 6.8 of the U.P. Electricity Supply Code, 2005 within four weeks; if filed, it is to be decided in accordance with law within the next four weeks after hearing. Coercive recovery on the demand is stayed for eight weeks or until disposal of the objection, whichever is earlier.

FACTUAL SUMMARY

The petitioner challenged a demand notice dated 5 January 2022 issued by the distribution licensee for Rs 5,62,123, and also sought a mandamus directing respondent no. 2 to decide his representation dated 31 January 2022 and to restrain coercive action while that representation remained pending. Counsel for the Power Distribution Corporation stated on instructions that the petitioner may file an objection against the impugned demand, which would be decided in accordance with law within a time-bound period.

HOLDING-UNITS

HOLDING-UNIT · UP-2005::6.8

6.8 objection as alternate remedy against demand notice

HOLDING

Without expressing any opinion on merits, a writ challenging a demand notice is disposed by giving liberty to file an objection under Para 6.8 of the U.P. Electricity Supply Code, 2005 within four weeks; if filed, the licensee shall decide it in accordance with law within the next four weeks after a reasonable opportunity of hearing, and no coercive action shall be taken on the demand for eight weeks or until disposal of the objection, whichever is earlier. ¶ 1

PRINCIPLE TAGS

- alternative-remedy-statutory-appeal-6.8** The writ against the demand notice was not decided on merits; the consumer was relegated to the Para 6.8 objection route stated by the licensee and adopted by the Court. ¶ 1
- para-6.8-objection-alternate-remedy** Liberty was granted to submit an objection under Para 6.8 before respondent no. 2, to be decided in accordance with law after hearing, in place of certiorari on the demand. ¶ 1
- assessment-6.8-alternate-remedy** Challenge to the Rs 5,62,123 demand was channelled to a time-bound Para 6.8 objection rather than High Court adjudication of the assessment. ¶ 1
- pending-6.8bi-objection-directed-for-reasoned-disposal-with-stay** The Court directed that a Para 6.8 objection, if filed within four weeks, be decided within the next four weeks after hearing, and stayed coercive recovery for eight weeks or until disposal, whichever is earlier. The order cites Para 6.8 generally, not clause 6.8(b)(i). ¶ 1

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — MERITS OF THE DEMAND NOTICE DATED 5 JANUARY 2022 AND OF THE REPRESENTATION DATED 31 JANUARY 2022

The Court expressly declined to express any opinion on the merits of the petitioner's case. ¶ 1

